



Land Use Department

Courthouse Annex

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<http://www.bouldercounty.us/lu/>

10/17/2006

Mr. Steven T. Brown, AICP
Lafarge, Inc.
10170 Church Ranch Way, Suite 200
Westminster, CO 80021

RE: Boulder County Land Use Docket SU-96-18 [Western Mobile (now Lafarge) Mining Plan]—Request to Eliminate Phase I of Approved Plan

Dear Steven:

This responds to your letter of September 15, 2006, in which, on behalf of the current owner Lafarge, you propose eliminating Phase I of the mining approved in Docket SU-96-18. I have discussed this matter with our senior management. We conclude that since this request is a reduction in extent and duration that will lessen impacts to neighbors and reduce traffic impacts to the area, we can approve it administratively. **Therefore, Phase I of the mining plan approved in Docket SU-96-18 is hereafter considered to be withdrawn by the Applicant/owner and is no longer a part of the Docket's special use approval.**

For record keeping purposes, this letter will be attached to your letter and map, and added to our permanent file for this docket. Please note that we make this determination subject to the following clarifications regarding the current status of the conditions of approval in Resolution 98-32 approving Docket #SU-96-18:

Condition 1:

- A. Condition #1's requirement that "[a]ll mining allowed by this Docket shall be completed in 30 years, commencing on January 1, 2003" arguably requires mining to commence by (no later than) January 1, 2003. For purposes of this determination, the 1/1/03 date is construed as the starting point for the 30-year approved mining term, rather than a requirement actually to start mining then. Consequently, there is no violation issue that might affect an administrative finding of no substantial modification in eliminating Phase I from the plan.
- B. Condition #1 also incorporates into the approval "all aspects of Section 4-605 of the Land Use Code, as amended," which is currently Section 4-604 of the Code. Subsection 4-604.B. of that section requires commencement of significant activity under a special use permit within five years of approval, or the special

Tom Mayer
County Commissioner

Ben Pearlman
County Commissioner

Will Toor
County Commissioner

use permit expires. We have determined that this special use permit has not expired for failure to commence activity under the permit, since the approval of Docket SU-96-18 also repealed and reinstated Dockets SU-69-476, and SU-80-26, which were the previous approvals of the "Rockin' WP" and the "Miller Pit" where mining has occurred. However, please note that Subsection 4-604.C. requires that a special use permit expires if the use is inactive for any continuous five-year period. While we do not now have information that such a lapse has occurred, it could occur in the future. Lafarge and any subsequent owner should be aware of this limitation.

Condition 2:

This condition remains in full force and effect as stated in Resolution 98-32, subject to elimination of the reference to "phase one" of the mining plan.

Conditions 3 through 6:

These conditions remain in full force and effect as stated in Resolution 98-32.

Condition 7:

This condition remains in full force and effect as stated in Resolution 98-32, subject to the change of the reference in Condition 7(B) to Phase I, to Phase II.

Conditions 8 through 15:

These conditions remain in full force and effect as stated in Resolution 98-32.

Condition 16:

This condition requires the mining pod adjacent to site 5BL7045, as described by *A Class III Cultural Resource Inventory of Western Mobile's Proposed Lyons Sand and Gravel Operations, Boulder County, Colorado, November, 1997*, be revised to avoid disturbance of the site. At this time, we cannot determine if this location is in Phase I, or Phase II. If it is in Phase I, the condition is no longer relevant. If it is in Phase II, the condition still applies as stated in Resolution 98-32.

Condition 17:

This condition remains in full force and effect as stated in Resolution 98-32.

Condition 18:

This condition applies only to Phase I, and requires the mining boundaries to be reconfigured after a new wetland assessment is done. Consequently, it is of no further force and effect.

Conditions 19 through 29:

These conditions remain in full force and effect as stated in Resolution 98-32.

Condition 30:

This condition allows the applicant to apply for a greater number of truck trips upon the earlier of 1/2003 or one year after mining has begun in Phase I. As mining never started, and 1/2003 has passed, this condition is of no further force and effect.

Conditions 31 through 34:

These conditions remain in full force and effect as stated in Resolution 98-32.

Condition 35:

This condition requires the applicant to establish a citizens' advisory committee no later than 1/2003. The condition is henceforth meant to require that this committee must be set up within a month prior to the commencement of mining.

Sincerely,

A handwritten signature in cursive script, reading "David Callahan", followed by a horizontal line.

David Callahan, AICP
Senior Planner

Copies to: Docket SU-96-18 file
M L Tucker